

The Repealing and Amending Act, 2017

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Union of India - Act

The Repealing and Amending Act, 2017

UNION OF INDIA

India

The Repealing and Amending Act, 2017

Act 2 of 2018

Published on 5 January 2018

Commenced on 5 January 2018

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The Repealing and Amending Act, 2017

(Act

No. 2 of 2018

)

[Dated 5th January, 2018]

Ministry of Law and Justice

(Legislative Department)

The following Act of Parliament received the assent of the President on the 5th January, 2018, and is hereby published for general information:-

An Act to repeal certain enactments and to amend certain other enactments.

Be it enacted by Parliament in the Sixty-eighth Year of the Republic of India as follows:-

1.

Short title.

- This Act may be called the Repealing and Amending Act, 2017.

2.

Repeal of certain enactments.

- The enactments specified in the First Schedule are hereby repealed to the extent mentioned in the fourth column thereof.

3.

Amendment of certain enactments.

- The enactments specified in the Second Schedule are hereby amended to the extent and in the manner mentioned in the fourth column thereof.

4.

Savings.

- The repeal by this Act of any enactment shall not affect any other enactment in which the repealed enactment has been applied, incorporated or referred to;

and this Act shall not affect the validity, invalidity, effect or consequences of anything already done or suffered, or any right, title, obligation or liability already acquired, accrued or incurred, or any remedy or proceeding in respect thereof, or any release or discharge of or from any debt, penalty, obligation, liability, claim or demand, or any indemnity already granted, or the proof of any past act or thing;

nor shall this Act affect any principle or rule of law, or established jurisdiction, form or course of pleading, practice or procedure, or existing usage, custom, privilege, restriction, exemption, office or appointment, notwithstanding that the same respectively may have been in any manner affirmed or recognised or derived by, in or from any enactment hereby repealed;

nor shall the repeal by this Act of any enactment revive or restore any jurisdiction, office, custom, liability, right, title, privilege, restriction, exemption, usage, practice, procedure or other matter or thing not now existing or in force.

The First Schedule

(See section 2)

Repeals

Year

No.

Short title

Extent of repeal

1

2

3

4

1850

XXXVII

The Public Servants (Inquiries) Act, 1850

The whole.

1852

VIII

The Sheriffs' Fees Act, 1852

The whole.

1866

XXI

The Converts' Marriage Dissolution Act, 1866

The whole.

1867

I

The Ganges Tolls Act, 1867

The whole.

1892

II

The Marriages' Validation Act, 1892

The whole.

1897

I

The Public Servants (Inquiries) Amendment Act, 1897

The whole.

1897

V

The Repealing and Amending Act, 1897

The whole.

1897

XIV

The Indian Short Titles Act, 1897

The whole.

1899

XXIII

The Church of Scotland Kirk Sessions Act, 1899

The whole.

1901

XI

The Amending Act, 1901

The whole.

1903

I

The Amending Act, 1903

The whole.

1928

XII

The Hindu Inheritance (Removal of Disabilities) Act, 1928

The whole.

1929

XXI

The Transfer of Property (Amendment) Supplementary Act, 1929

So much as is not repealed.

1934

XXVII

The Assam Criminal Law Amendment (Supplementary) Act, 1934

The whole.

1935

XIII

The Jubbulpore and Chhattisgarh Divisions (Divorce Proceedings Validation) Act, 1935

The whole.

1936

V

The Decrees and Orders Validating Act, 1936

The whole.

1936

XVI

The Bangalore Marriages Validating Act, 1936

The whole.

1938

XI

The Hindu Women's Right to Property (Amendment) Act, 1938

The whole.

1939

XXIX

The Indian Tariff (Fourth Amendment) Act, 1939

The whole.

1946

XXII

The Mica Mines Labour Welfare Fund Act, 1946

The whole.

1948

XL

The Indian Matrimonial Causes (War Marriages) Act, 1948

The whole.

1948

LI

The Imperial Library (Change of Name) Act, 1948

The whole.

1950

XXXIII

The Opium and Revenue Laws (Extension of Application) Act,

1950

The whole.

1951

I

The Code of Criminal Procedure (Amendment) Act, 1951

So much as is not repealed.

1951

II

The Code of Civil Procedure (Amendment) Act, 1951

So much as is not repealed.

1953

11

The Administration of Evacuee Property (Amendment) Act, 1953

The whole.

1954

3

The Ancient and Historical Monuments and Archaeological Sites
and Remains (Declaration of National Importance) Amendment Act,

1953

The whole.

1954

42

The Administration of Evacuee Property (Amendment) Act, 1954

The whole.

1955

26

The Code of Criminal Procedure (Amendment) Act, 1955

So much as is not repealed.

1956

7

The Sales-Tax Laws Validation Act, 1956

The whole.

1956

27

The Representation of the People (Second Amendment) Act, 1956

The whole.

1956

66

The Code of Civil Procedure (Amendment) Act, 1956

So much as is not repealed.

1956

70

The Ancient and Historical Monuments and Archaeological Sites
and Remains (Declaration of National Importance) Amendment Act,

1956

The whole.

1956

91

The Administration of Evacuee Property (Amendment) Act, 1956

The whole.

1956

93

The Young Persons (Harmful Publications) Act, 1956

The whole.

1956

100

The Motor Vehicles (Amendment) Act, 1956

The whole.

1959

37

The Central Excises and Salt (Amendment) Act, 1959

So much as is not repealed.

1959

41

The Criminal Law (Amendment) Act, 1959

So much as is not repealed.

1959

48

The Miscellaneous Personal Laws (Extension) Act, 1959

The whole.

1959

59

The Mineral Oils (Additional Duties of Excise and Customs)
Amendment Act, 1959

So much as is not repealed.

1959

61

The Married Women's Property (Extension) Act, 1959

The whole.

1960

2

The Displaced Persons (Compensation and Rehabilitation)

Amendment Act, 1960

So much as is not repealed.

1960

5

The Motor Vehicles (Amendment) Act, 1960

So much as is not repealed.

1960

19

The Hindu Marriages (Validation of Proceedings) Act, 1960

The whole.

1960

38

The Central Excises (Conversion to Metric Units) Act, 1960

So much as is not repealed.

1960

40

The Customs Duties and Cesses (Conversion to Metric Units)
Act, 1960

So much as is not repealed.

1960

57

The British Statutes (Application to India) Repeal Act, 1960

The whole.

1966

47

The Representation of the People (Amendment) Act, 1966

So much as is not repealed.

1969

46

The Punjab Legislative Council (Abolition) Act, 1969

The whole.

1971

20

The Bengal Finance (Sales Tax) (Delhi Validation of
Appointments and Proceedings) Act, 1971

The whole.

1971

54

The Coal Bearing Areas (Acquisition and Development) Amendment
and Validation Act, 1971

The whole.

1972

62

The Limestone and Dolomite Mines Labour Welfare Fund Act, 1972

The whole.

1976

91

The Delhi Sales Tax (Amendment and Validation) Act, 1976

The whole.

1980

63

The Code of Criminal Procedure (Amendment) Act, 1980

So much as is not repealed.

1981

30

The Cine-workers Welfare Cess Act, 1981

The whole.

1983

20

The Delegated Legislation Provisions (Amendment) Act, 1983

The whole.

1984

19

The Government of Union Territories (Amendment) Act, 1984

So much as is not repealed.

1985

37

The Tea Companies (Acquisition and Transfer of Sick Tea Units) Act, 1985

The whole.

1985

81

The Banking Laws (Amendment) Act, 1985

So much as is not repealed.

1986

6

The Additional Duties of Excise (Textiles and Textile Articles) Amendment Act, 1985

The whole.

1986

7

The Additional Duties of Excise (Goods of Special Importance) Second Amendment Act, 1985

The whole.

1986

8

The Customs Tariff (Amendment) Act, 1985

The whole.

1986

19

The Administrative Tribunals (Amendment) Act, 1986

So much as is not repealed.

1986

46

The Taxation Laws (Amendment and Miscellaneous Provisions) Act, 1986

The whole.

1999

29

The Contingency Fund of India (Amendment) Act, 1999

The whole.

1999

31

The Securities Laws (Amendment) Act, 1999

The whole.

1999

32

The Securities Laws (Second Amendment) Act, 1999

The whole.

1999

45

The Vice-President's Pension (Amendment) Act, 1999

The whole.

2000

14

The President's Emoluments and Pension (Amendment) Act, 2000

The whole.

2000

49

The Protection of Human Rights (Amendment) Act, 2000

The whole.

2001

12

The Colonial Prisoners Removal (Repeal) Act, 2001

The whole.

2001

19

The Industrial Disputes (Banking Companies) Decision (Repeal)

Act, 2001

The whole.

2001

22

The Judicial Administration Laws (Repeal) Act, 2001

The whole.

2001

24

The Indian Railway Companies (Repeal) Act, 2001

The whole.

2001

25

The Railway Companies (Substitution of Parties in Civil Proceedings) Repeal Act, 2001

The whole.

2001

26

The Hyderabad Export Duties (Validation) Repeal Act, 2001

The whole.

2001

50

The Code of Criminal Procedure (Amendment) Act, 2001

The whole.

2002

21

The St. John Ambulance Association (India) Transfer of Funds
(Repeal) Act, 2002

The whole.

2002

22

The Code of Civil Procedure (Amendment) Act, 2002

The whole.

2002

23

The Vice-President's Pension (Amendment) Act, 2002

The whole.

2002

28

The National Institute of Pharmaceutical Education and
Research (Amendment) Act, 2002

The whole.

2002

59

The Securities and Exchange Board of India (Amendment) Act,

2002

The whole.

2002

68

The North-Eastern Council (Amendment) Act, 2002

The whole.

2003

25

The Customs Tariff (Amendment) Act, 2003

The whole.

2003

31

The Prevention of Insults to National Honour (Amendment) Act,

2003

The whole.

2004

7

The Uttar Pradesh Reorganisation (Amendment) Act, 2003

The whole.

2004

28

The Special Tribunals (Supplementary Provisions) Repeal Act,

2004

The whole.

2004

29

The Unlawful Activities (Prevention) Amendment Act, 2004

The whole.

2005

1

The Securities Laws (Amendment) Act, 2004

The whole.

2005

5

The Central Excise Tariff (Amendment) Act, 2004

The whole.

2005

31

The Hire-purchase (Repeal) Act, 2005

The whole.

2005

51

The Prevention of Insults to National Honour (Amendment) Act,

2005

The whole.

2006

10

The Khadi and Village Industries Commission (Amendment) Act,

2006

The whole.

2006

20

The Delhi Special Police Establishment (Amendment) Act, 2006

The whole.

2006

30

The Union Duties of Excise (Electricity) Distribution Repeal

Act, 2006

The whole.

2006

43

The Protection of Human Rights (Amendment) Act, 2006

The whole.

2006

51

The Jallianwala Bagh National Memorial (Amendment) Act, 2006

The whole.

2007

1

The Administrative Tribunals (Amendment) Act, 2007

The whole.

2007

16

The Taxation Laws (Amendment) Act, 2007

Sections 9 to 11.

2007

19

The National Institute of Pharmaceutical Education and Research (Amendment) Act, 2007

The whole.

2007

27

The Securities Contracts (Regulation) Amendment Act, 2007

The whole.

2008

28

The President's Emoluments and Pension (Amendment) Act, 2008

The whole.

2008

29

The Vice-President's Pension (Amendment) Act, 2008

The whole.

2008

35

The Unlawful Activities (Prevention) Amendment Act, 2008

The whole.

2009

1

The Governors (Emoluments, Allowances and Privileges) Amendment Act, 2008

The whole.

The Second Schedule

(See Section 3)

Amendments

Year

No.

Short title

Amendments

1

2

3

4

2007

29

The National Institutes of Technology, Science Education and Research Act, 2007

In clause (d) of section 3, the words "as the case may be" shall be omitted.

2009

27

The Prevention and Control of Infectious and Contagious Diseases in Animals Act, 2009

In sub-section (1) of section 1, for the word and figures "Bill, 2009", the word and figures "Act, 2009" shall be substituted.

2009

35

The Right of Children to Free and Compulsory

Education Act, 2009

In section 1, for the marginal heading, the
marginal heading "Short title, extent, application and
commencement" shall be substituted.

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